

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX X

SUMMONS

JHAROLYN CRUZ,

Plaintiff,

- Against-

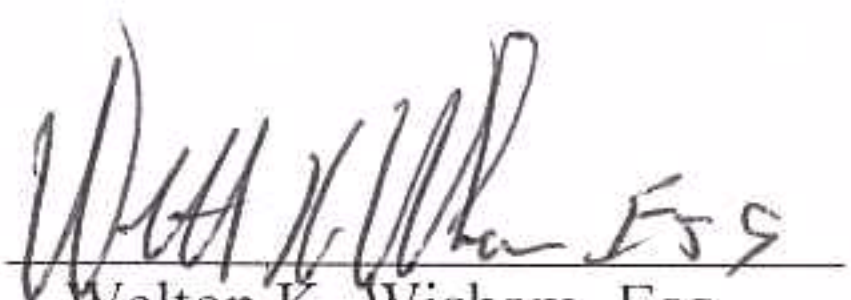
CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT AND P.O. TYLER HANSON,
SHIELD NO. 17921, IN HIS INDIVIDUAL CAPACITY,
AND P.O. SGT JOHNATHAN RIVERA, IN HIS INDIVIDUAL
CAPACITY.

Defendants,

X

You are hereby summoned to Answer the Complaint in this action and to serve a copy of your answer or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: May 20, 2023
Bronx, New York

By  Welton K. Wisham, Esq.
The Law Offices of Welton K. Wisham
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One Police Plaza,
York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX X

JHAROLYN CRUZ

ECF

Index No.

Plaintiff,

- against -

ComplaintPlaintiff Designates Bronx County
as Place of Trial
Jury Trial DemandedCITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT AND P.O. TYLER HANSON,
SHIELD NO. 17921, IN HIS INDIVIDUAL CAPACITY,
AND P.O. SGT JOHNATHAN RIVERA, IN HIS INDIVIDUAL
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Defendants,

X

Plaintiff, **Jharolyn Cruz**, by his attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for his Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and police officers Tyler Hanson and Sgt. Johnathan Rivera, the following;

PRELIMINARY STATEMENT

1. This action arises out of Defendants' role in the unreasonable search, seizure, detention and incarceration of the Plaintiff on September 12, 2021 by the Defendants which caused Plaintiff to suffer undue emotional distress from his three days of unlawful incarceration.

2. Defendants, Police officers Tyler Hanson and Sgt. Johnathan Rivera, knowingly and willfully abused their authority by arresting Mr. Cruz without probable cause to have reasonably believed that Plaintiff had committed a crime.

3. Mr. Cruz was a passenger in a vehicle owned and operated by Joel Ortega, a Navy Seal who was authorized to possess a firearm.

4. When the Defendants stopped the vehicle and searched the vehicle and found a weapon, Mr. Ortega emphatically informed officer Hanson that the gun found inside his vehicle was registered to him.

5. Mr. Ortega took ownership of the gun at the time of the stop, yet Mr. Cruz, and another occupant, Brian Morillo were all arrested and charged with Criminal Possession of a firearm.

6. All charges against the Plaintiff were favorably dismissed on November 11, 2021.

7. Mr. Cruz now brings this action pursuant to 42 U.S.C Section 1983, against the Defendants for the violations of his constitutional rights arising under the Fourth and Fourteenth Amendments to the Constitution of the United States.

JURISDICTION AND VENUE

8. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Bronx, County which caused serious injury to the Plaintiff, a resident of the Bronx, and State of New York.

9. This action arises under the Fourth, and Fourteenth Amendments to the Constitution of the United States, and pursuant to 42 U.S.C Section 1983, for which this Court has concurrent jurisdiction.

10. Venue is proper in this Court pursuant to CPLR Section 503. Bronx County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the Bronx, and of the State of New York and because Bronx County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

11. Plaintiff, Jharolyn Cruz at all times relevant herein was and still remains a resident of the County of the Bronx, State of New York.

12. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

13. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

14. That at all times relevant hereto, the City of New York employed the Defendant Officers involved in this incident.

15. That at all times relevant herein, Defendants Police officers, Tyler Hanson and Sgt. Johnathan Rivera, were duly appointed as police officer of the New York City Police Department who were involved in Plaintiff's unlawful arrest, ,detention, and prosecution set forth herein .

16. The officers Tyler Hanson and Sgt. Johnathan Rivera were at all times mentioned in this Complaint, agents, servants, and employees, acting within the scope of their employment by the New York City Police Department acting within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

17. That at all times relevant hereto, the New York City Police Department ("NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

18. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, policies and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

19. That at all times relevant hereto, Defendant New York City Police Department was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

20. That at all relevant times, the individual police officers involved in this incident Acted within the scope of their employment and under the color of state law.

JURY DEMAND

21. Plaintiff demands trial by jury.

NOTICE OF CLAIM

22. On or about January 19, 2022. Plaintiff, in furtherance of his New York State causes of action, filed a timely notice of claim well within the statutory requirement of ninety days from the date of the incident alleged herein against the named Defendants and the City of New York.

23. On January 28, 2022, the Comptroller of the City of New York acknowledge receipt of Mr. Cruz's Notice of Claim by assigning claim number 2022PI002792.

24. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

25. That due to the fact that this action has not been commenced within one year and ninety days of the date of the incident complained of, Plaintiff's causes of action and limited pursuant to 42 U.S.C. Section 1983, for False arrest, , False Imprisonment and Malicious

Prosecution and violation of Plaintiff's rights arising under the Due Process Clause to the Fourteenth Amendment to the Constitution of the United States.

STATEMENT OF FACTS

26. On September 12, 2021 at approximately 1:am ,Mr. Cruz met with two of his friends, Joel Ortega and Brian Morillo on East 184th St. near Morris Park Ave., Bronx, New York.

27. Mr. Joel Ortega was driving a Brown 2021 Kia Sedan with a California License Plates.

28. Mr. Cruz entered the vehicle and sat directly behind the driver of the vehicle, Joel Ortega.

29. Mr. Morillo was seated in the front passenger seat next to the driver.

30. The occupants of the car were going to find food in the area.

31. Soon thereafter, members of the New York City Police Department stopped the vehicle for unknown reasons, there were no obvious traffic infractions for which the officers were justified in stopping the vehicle.

32. Officer Hanson's Criminal Information filed in the Bronx Criminal Court failed to state the predicate upon which the vehicle was stopped.

33. The officers did not give an explanation to Mr. Cruz or the driver as to why the vehicle was ordered to stop.

34. Mr. Ortega, as driver of the vehicle was not given a summons for violating the New York State Traffic Laws relating to the date of this incident.

35. Police SGT Jonathan Rivera of the 52nd police precinct is believed to have been the supervising officer on the scene .

36. The officers ordered the occupants out of the car. The occupants complied without incident.

37. The occupants were ordered to place their hands behind their backs as the officers placed handcuffs on Mr. Cruz, Ortega and Morillo.

38. **Mr. Ortega told the officers that he was a Navy Seal licensed to carry a firearm.**

39. Mr. Cruz was unaware that there was a gun in the motor vehicle which he had just entered.

40. That the officers were indifferent to the laws regarding Constructive Possession of a Weapon in a Motor Vehicle which allows the officers to arrest every occupant of the vehicle.

41. Constructive Possession is inapplicable when the owner of the weapons informs the officers that the weapon belongs to him and not the other occupants.

42. That the Defendants deliberately ignored the law and arrested Mr. Cruz and Morillo without probable cause.

43. The Defendants drove the occupants to the 52nd police precinct on Webster Ave, in the Bronx, New York.

44. Mr. Cruz was arraigned on September 12, 2021, after being in the precinct for twenty-four hours.

45. Plaintiff was then taken to Central Booking where he was held for two days and subsequently charged with Criminal Possession of a Weapon, P.L. Section 265.03(3) Criminal Possession of a Firearm, P.L. Section 265.01(b)(1), and Criminal Possession of a Weapon in the 4th Degree, P.L. Section 265.01(1).

46. Unable to make bail, Mr. Cruz remained incarcerated for approximately forty- eight hours until his subsequent release upon the payment of bail in the amount of \$900.

47. Mr. Ortega repeated his ownership of the weapon when he arrived at the precinct by telling the officers that the gun was his. The officers ignored this fact and continued to process Mr. Cruz's arrest.

48. Mr. Cruz was not provided a meal while he was in Central Booking four hours because the police told the Plaintiff that it was too late.

49. The Office of the Bronx District Attorney's Office **provided notice to Defendant Joel Ortega of their intent to use the following statement made by Mr. Ortega in the Criminal prosecution pursuant to CPL 710.30(1)(a) " The GUN is mine. They had nothing to do with it"! " It's my gun in the car. I have a permit but it's not New York. I just moved here from California , I'm in the Navy and I was stationed in California. I'm moving to Baltimore I'm just passing through and I forgot that I had it back there. The money and weed in the bag is mine too and it's my car"! Joel Ortega (emphasis added).**

50. Plaintiff was ordered to appear in Court approximately three times until the District Attorney made a motion to Dismiss all charges against Mr. Cruz on November 18,2021.

51. That the underlying police officers knowingly and willfully arrested Mr. Cruz without probable cause to have reasonably believed that Plaintiff was in possession of a weapon.

52. Officers Hanson and Sgt Rivera deliberately ignored the fact that Mr. Ortega had taken responsibility for ownership of the weapon at the time of the arrest and abused their authority by depriving Plaintiff of his liberty for two days without probable cause.

53. The officers knew Mr. Cruz did not have dominion or control over the weapon or any other items found inside the vehicle owned and operated by Joel Ortega.

54. As a result of the misconduct by the underlying officers, Plaintiff Cruz was caused to suffer emotional pain and suffering in an amount the exceeds the jurisdiction of the lower Courts.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS POLICE OFFICERS TYLER HANSON AND SGT JOHNATHAN RIVERA PURSUANT TO 42 U. S. C. SECTION 1983, FOR FALSE ARREST AND FALSE IMPRISONMENT IN VIOLATION OF THE FOURTH AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES.

55. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “ 54”, with the same force, and effect, as though more fully set forth at length herein.

56. Defendants police officers Hanson and Sgt Rivera unreasonably initiated Plaintiff’s arrest, and detention without probable cause to have reasonably believed that Mr. Cruz had committed a crime.

57. The officers knew that Joel Ortega had informed the officers that he was a Navy Seal and that the weapon found by the officers inside the vehicle was in fact Mr. Ortega’s.

58. That the Defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely arrested and imprisoned, detained, and restrained Mr. Cruz without legal justification.

59. That at all times herein mentioned the Plaintiff was falsely imprisoned, detained, and restrained by officers Tyler Hanson and Sgt Johnathan Rivera who were acting under color of law and within the scope of their employment at the time of Plaintiff’s arrest on September 12, 2021.

60. That as a result of the false imprisonment of Plaintiff , Jharolyn Cruz, by the Defendants, their agents, servants and/or employees, Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom without due process of law and without probable cause.

61. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, Mr. Cruz has suffered severe and extensive emotional pain, anguish and suffering and harm.

62. That in the manner described herein, the Defendants acted carelessly and recklessly with total disregard of the Plaintiff's constitutional rights.

63. That the Defendants knew, or should have known that their actions would or probably would inflict emotional distress upon the Plaintiff.

64. That at all times mentioned herein, Plaintiff was aware of and did not consent to his confinement.

65. That the false imprisonment, detention, and deprivation of Plaintiff's liberty constituted a malicious act, and was a wanton and reckless degradation of the Plaintiff's freedom.

66. That as a result of the false imprisonment, detention, and unreasonable search and seizure of the Plaintiff by the Defendants, their agents, servants and/or employees, Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn and deprivation of his liberty and freedom secured under the Fourth Amendment to the Constitution of the United States without probable cause or legal justification.

67. That by reason of the foregoing the Plaintiff, Jharolyn Cruz has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
UNDER 42 U.S.C. SECTION 1983, FOR FAILURE TO TRAIN, SUPERVISE OR
DISCIPLINE DEFENDANTS POLICE OFFICERS TYLER HANSON AND SGT
JOHNATHAN RIVERA**

68. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through 67", with the same force and effect as though more fully set forth at length herein.

69. That at all times herein mentioned the individual Defendants named herein of the New York City Police Department involved in the incident complained of herein, were negligently hired, trained, supervised, disciplined, and retained by the City of New York.

70. That the acts complained of herein resulted from the Defendants City of New York, and the New York City Police Department, through their agents, servants and employees, breaching its duty to properly assign, train, supervise, discipline and retained its employees within the New York City Police Department with regards to training its officers in Constructive Possession of a Weapon found in a motor vehicle when one of the occupants claims ownership of such which prevents prosecution against all occupant who lack possession and dominion and control.

71. That the City of New York failure to train, supervise, or discipline Defendant police officers which caused Plaintiff Froylan Suazo to suffer and unlawful detention, incarceration and undue extreme emotional stress.

72. That the failure by the City of New York to properly train, supervise or discipline the Defendant police officers and other members within the New York City Police Department constituted a practice of acquiescence, and a tolerance of ongoing unconstitutional detentions, and seizures, which allowed officers Hanson and Rivera to believe that they could violate Plaintiffs' constitutional rights with impunity.

73. By reason of the foregoing, officers Hanson and Rivera failed, and refused to use such care in the performance of their duties as a reasonably prudent police officer would have

used under similar circumstances, thus resulting in significant emotional injuries to the Plaintiff including his loss of liberty and permanent emotional distress.

74. That the City of New York should be held liable for the underlying constitutional violations committed by non-policy makers employees due to the fact that the City's policy and customs of arresting individuals such as Mr. Cruz demonstrates deliberate indifference to the likelihood that a constitutional violation would occur.

75. That by the conduct of the Defendants, as described herein, the City of New York is liable to the Plaintiff under 42 U.S.C. Section 1983 for the violations, under color of state law for violating Plaintiff's right to be free from deprivation of liberty without due process of law under the Fourth and Fourteenth Amendment to the United States Constitution.

76. That the failure of the City of New York, and the New York City Police Department to adequately train, supervise or discipline or in any other way control the behavior of the officers associated with Mr. Cruz's unlawful arrest and detention in the exercise of their official functions, is evidence of the reckless lack of cautious disregard for the rights of the Plaintiff.

77. That such conduct, or lack thereof, exhibited a lack of the degree of due care which a reasonable and prudent police officer would have shown in executing the duties as police officers within the New York City Police Department.

78. That the need for more or better supervision, or training to protect against the constitutional violation was patently obvious which the City of New York failed to provide.

79. As consequence thereof, Plaintiff Jharolyn Cruz has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST POLICE OFFICERS TYLER HANSON AND SGT JOHNATHAN
RIVERA PURSUANT TO 42 U. S. C SECTION 1983, FOR THE VIOLATION OF
PLAINTIFF'S RIGHTS UNDER THE DUE PROCESS CLAUSE OF THE
FOURTEENTH AMENDMENT TO THE CONSTITUTION OF THE UNITED
STATES**

80. That Plaintiffs repeats, reiterates and realleges each and every allegation contained in Paragraphs “1 through 79”, with the same force and effect as though more fully set forth at length here herein.

81. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of Plaintiffs’ right to free from the deprivation of liberty without due process of law.

82. As direct and proximate result of the acts and omissions of the Defendant police officers Hanson and Rivera ,including their supervisors and other members of the New York City Police Department, Jharolyn Cruz has been greatly humiliated, embarrassed, and injured, and has been caused to suffer extreme emotional pain, suffering, and mental anguish.

ADD MALICIOUS PROSECUTION

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF AGAINST THE DEFENDANTS, MICHAEL BEST AND ANDREW TUERS FOR MALICIOUS PROSECUTION PURSUANT TO 42 U.S.C. SECTION 1983.

111. That the Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered”1 through “110”, with the same force and effect as though more fully set forth at length herein

112. That the Defendants, their agents, servants and /or employees, without cause or justification, intentionally and maliciously initiated the underlying criminal proceedings against Plaintiff Johnson without probable cause to have reasonably believed Mr. Johnson has committed the underlying criminal acts for which he was accused.

113. That the Defendant officers continued the prosecution against Mr. Johnson without probable cause.

114. Plaintiff was deprived of his right to liberty for approximately eight months due to his wrongful arrest, incarceration inside Rikers Island.

115. The criminal proceeding against Plaintiff Johnson was favorably terminated and sealed on July 6, 2021.

116. That the prior criminal proceeding against Mr. Johnson was initiated without probable cause.

117. That the Defendants, Detectives Michael Best and Andrew Tuers initiated the underlying criminal proceedings against the Plaintiff with malice.

118. As direct and proximate result of the Defendant officers' misconduct, Plaintiff suffered extreme mental anguish, humiliation, pain and emotional distress from his wrongful and illegal eight months of incarceration in Rikers Island..

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants police officers Tyler Hanson and Sgt Johnathan Rivera for their willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

C. An award to plaintiff of the costs and disbursements herein.

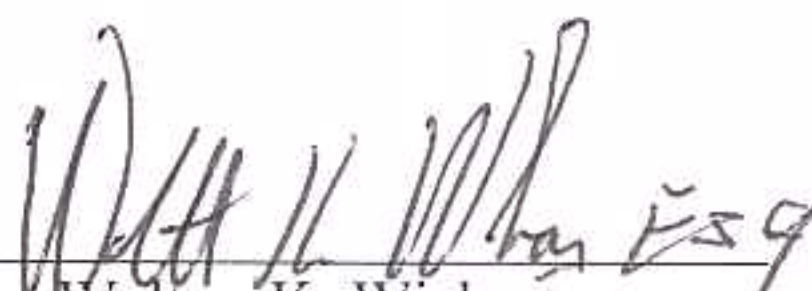
D. An award of reasonable attorney fees pursuant to 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated: May 20, 2023

Bronx, New York

By


Welton K. Wisham

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

X

JHAROLYN CRUZ

AFFIDAVIT

Plaintiff,

• against —

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT AND P.O. TYLER HANSON,
SHIELD NO. 17921, IN HIS INDIVIDUAL CAPACITY,
AND P.O. SGT JOHNATHAN RIVERA, IN HIS INDIVIDUAL
CAPACITY.

Defendants,

X

STATE OF NEW YORK)

SS

COUNTY OF BRONX

I, Jharolyn Cruz being duly sworn deposes and says under penalty of perjury that:

I am the Plaintiff in the above stated matter herein that I have read the forgoing Summons and Complaint and knows the contents thereof; that the same is true to my own knowledge, except as to those matters therein stated to be allege upon information and belief, and as to those matters, I believe them to be true.

Jharolyn Cruz

Jharolyn Cruz

1601 Metropolitan Ave. Apt 4H
Bronx, New York 10462

Sworn to before me

This 22 th day of May, 2023

Lucy A. Fisco
NOTARY PUBLIC

